

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #03	CCRB Case #: 201411480	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 10/23/2014 7:30 PM	Location of Incident: Grove Street and Fairview Avenue	18 Mo. SOL 4/23/2016	Precinct: 104
Date/Time CV Reported Wed, 11/12/2014 11:51 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/12/2014 11:51 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Mihai Tudor	17725	947556	104 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Elix Hernandez	04249	936752	104 PCT
2. SGT Daniel Delaney	02297	945653	104 PCT
3. SGT John Lawton	2082	930713	104 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mihai Tudor	Discourtesy: PO Mihai Tudor spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Mihai Tudor	Abuse: PO Mihai Tudor threatened to arrest § 87(2)(b)	B . Exonerated

Case Summary

On October 23, 2014, at approximately 7:30 a.m., § 87(2)(b) cleared the corner of Grove Street and Fairview Avenue in Queens of parked cars for a film production. He got into a verbal dispute with an unidentified male over parking and he called the police. PO Mihai Tudor and PO Elix Hernandez of the 104th Precinct responded. § 87(2)(b) asked PO Tudor to prepare a police report and PO Tudor refused. PO Tudor and PO Hernandez left the location and § 87(2)(b) called 911 again. PO Tudor and PO Hernandez returned to the location and § 87(2)(b) asked PO Tudor for a report because he felt threatened by the male. PO Tudor replied, “You’re full of shit” (**Allegation A**). § 87(2)(b) requested that PO Tudor call a supervisor. PO Tudor replied, “Alright, when my supervisor gets here, I’m locking your fucking ass up” (**Allegation B**). § 87(2)(b) was handcuffed and Sgt. Lawton arrived. § 87(2)(b) tried to speak to Sgt. John Lawton but PO Tudor stopped him and told him to “Shut the fuck up.” § 87(2)(b) was released with a § 87(2)(b) summons.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation and he rejected § 87(2)(b).
- § 87(2)(b) has not filed a notice of claims with the City of New York as of January 13, 2015.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- PO Tudor has been a member of service for six years and has no substantiated allegations against him (Encl. 1A)
- This is § 87(2)(b)'s first complaint with the CCRB (Encl. 2A).

NYPD Documents

- § 87(2)(a) 160.50

Findings and Recommendations

Explanation of Subject Officer Identification

- PO Tudor acknowledged his interaction with § 87(2)(b) during his interview.

Allegation A – Discourtesy: PO Mihai Tudor spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that he called 911 in regards to a dispute he had with an unidentified male regarding parking. PO Tudor arrived at the location with his partner, PO Hernandez. § 87(2)(b) asked PO Tudor for a police report about what just occurred even though the male had left. PO Tudor refused and left the scene. § 87(2)(b) called 911 again and PO Tudor returned to the location with PO Hernandez. § 87(2)(b) asked PO Tudor again for a police report because he did not feel safe. PO Tudor replied, “You’re full of shit.” § 87(2)(b) then requested to speak to a supervisor and PO Tudor said, “When my supervisor gets here, I’m locking your fucking ass up.” When PO Tudor’s supervisor, identified by the investigation as Sgt. John Lawton, arrived. § 87(2)(b) tried to speak to him but PO Tudor stopped him and told him, “Shut the fuck up.” § 87(2)(b) was issued a summons for § 87(2)(b) and was released.

PO Tudor stated that he received a radio run for a dispute and arrived at the location with PO Hernandez. § 87(2)(b) was irate and stated that he wanted a complaint report filed about the

man that argued with him. PO Tudor explained that it was a simple verbal dispute and that the incident was over since the man left. PO Tudor did not recall if he said, “You’re full of shit.” to § 87(2)(b). PO Tudor and PO Hernandez left the location and responded again when there was another call from § 87(2)(b). Before PO Tudor could get out of the vehicle, § 87(2)(b) approached in what PO Tudor believed was a threatening manner. He got close to PO Tudor’s face on the driver’s side and blocked him from opening the door. PO Tudor gave § 87(2)(b) multiple commands to step away from the police vehicle and he eventually did. PO Tudor exited the vehicle and § 87(2)(b) touched his arm but he could not recall in what manner. PO Tudor saw this as a threatening motion and immediately handcuffed § 87(2)(b). He then called for a sergeant to respond to the location. § 87(2)(b) continued to scream that he wanted a complaint filed against the man in his dispute. PO Tudor did not recall if he told § 87(2)(b) “I’m locking your fucking ass up.” Sgt. Delaney and Sgt. Lawton arrived and PO Tudor did not tell § 87(2)(b) to “shut the fuck up” in their presence or any point during the incident. § 87(2)(b) was released with a summons.

§ 87(2)(g) PO Hernandez did not leave the police vehicle during the second interaction but stated that he did not hear PO Tudor curse at § 87(2)(b). He also did not hear PO Tudor say, “Shut the fuck up” when either sergeant arrived.

Sgt. Lawton stated that he arrived at the location when § 87(2)(b) was already in handcuffs. He was irate and stated that PO Tudor handcuffed him for no reason. Sgt. Lawton told § 87(2)(b) that things would be sorted out in a bit and told PO Tudor to check § 87(2)(b)’s identification for warrants. Sgt. Delaney arrived at the location and Sgt. Lawton then left the location. He did not hear PO Tudor curse at § 87(2)(b) in his presence. Sgt. Delaney’s statement was consistent with Sgt. Lawton and he also stated that he did not hear PO Tudor curse at § 87(2)(b) in his presence.

§ 87(2)(b) alleged that PO Tudor cursed at him multiple times during their interaction. § 87(2)(g) It is therefore recommended that **Allegation A be Unsubstantiated.**

Allegation B – Abuse of Authority: PO Mihai Tudor threatened to arrest § 87(2)(b)

As stated above, § 87(2)(b) alleged that after he asked for a supervisor, PO Tudor replied, “When my supervisor gets here, I’m locking your fucking ass up.” Aside from the discourteous language in the sentence which was addressed above, PO Tudor threatened to arrest § 87(2)(b).

PO Tudor did not recall if he threatened to arrest § 87(2)(b) and PO Hernandez, Sgt. Lawton and Sgt. Delaney denied hearing it. § 87(2)(b) was issued a summons by PO Tudor for disorderly conduct in which he noted that § 87(2)(b) caused a public inconvenience and alarm by acting in a loud and boisterous manner. PO Tudor and PO Hernandez both stated that § 87(2)(b) approached their police vehicle in an irate manner and blocked PO Tudor from exiting the vehicle. PO Tudor also stated that § 87(2)(b) put his hand on him in a manner he felt was threatening as he got out of the vehicle.

New York State Penal Law 240.20 states that a person is guilty of disorderly conduct when, in a public place, he engages in fighting or in violent, tumultuous or threatening behavior (encl. CL1).

§ 87(2)(g)

It is therefore recommended that **Allegation B be Exonerated.**

Pod:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date